

22STCV23458 22STCV23458

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Case Number: 22STCV23458 Hearing Date: August 17, 2026 Dept: 406

COSTTREE HOLDINGS, LLC,

Plaintiff,

v.

ECIVIS, INC., et al.,

Defendants.

AND RELATED MATTERS.

Case No.: 22STCV23458

Hearing Date: August 17, 2026

[TENTATIVE]

order RE:

cross-defendant nicolie wickwire's

motion to compel further responses (CRS# 7493)

I. BACKGROUND

a. The Underlying Complaint

On July 20, 2022, Plaintiff CostTree

Holding, LLC (CostTree) filed this action against Defendants eCivis, Inc.

(eCivis), GTY Technology Holdings, Inc. (GTY), and James Ha (Ha). On March 15, 2024, Plaintiffs CostTree and Capital Accounting Partners, LLC (CAP) filed the operative Second Amended Complaint (SAC), alleging (1) breach of the covenant of good faith and fair dealing, (2) fraud, (3) negligent misrepresentation, (4) civil conspiracy, (5) breach of contract, and (6) intentional interference with contractual relations.

The SAC alleges that CostTree agreed to sell its assets to eCivis through an Asset Purchase Agreement (APA) with eCivis. One of these assets was a certain program developed by CostTree, called Allocate. In exchange for the sale, the APA provided that CostTree would make earn-out payments from Allocate until a certain date and that eCivis would assume certain liabilities of CostTree, including a License Agreement with CAP. eCivis has allegedly failed to adequately promote sales or renewals of Allocate and has not assumed any of CostTree's liabilities.

eCivis allegedly acted to minimize CostTree's earn-out payments from Allocate until CostTree's right to earn-out payments expired under the APA. Meanwhile, Ha, the CEO of eCivis, sought to maximize his own earn-out payments from eCivis's programs under an agreement with GTY, which acquired eCivis and its programs. Despite increased resources from the GTY acquisition to market eCivis's programs, eCivis allegedly refused to market or sell Allocate until CostTree's right to earn-out payments expired. This allegedly allowed eCivis to effectively acquire CostTree's assets for little to no consideration. Defendants allegedly concocted this scheme to remove a competitor from the market and maximize their own profits.

Defendants also allegedly terminated the Licensing Agreement with CAP without following the procedures for termination outlined in the Licensing Agreement. Defendants allegedly cut off CAP's access to Allocate, preventing CAP from servicing its clientele for nearly a month. Defendants allegedly did this as retaliation for CostTree filing this action, as Nicolie Wickwire (Wickwire) is the CEO of both CostTree and CAP.

Ha has since been dismissed.

b. Wickwire's Related Action

On October 6, 2023, Wickwire filed the action Nicolie Wickwire v. eCivis, Inc., et al. (23CMCV01613),

alleging (1) breach of the covenant of good faith and fair dealing, (2) constructive discharge in violation of public policy, (3) defamation, and (4) declaratory relief. The Wickwire action was consolidated with this action, with this action as the lead case. However, Wickwire subsequently dismissed her complaint with prejudice.

c. The Cross-Complaint

On April 29, 2024, eCivis and GTY (dba Euna Solutions) cross-complained against CostTree, CAP, Wickwire, and Stephanie Ratajczak (Ratajczak). eCivis and GTY filed the operative Third Amended Cross-Complaint (TACC) on September 15, 2025, alleging (1) conversion, (2) intentional interference with prospective economic advantage, (3) breach of employment agreement, (4) breach of the APA, (5) breach of the CAP Licensing Agreement, (6) fraud, and (7) civil conspiracy.

The TACC alleges that Allocate underperformed as compared to Wickwire's promises, despite assistance from eCivis and GTY. Upon Wickwire's job title change, she allegedly refused to sign the new employment agreement and directed her subordinate, Ratajczak, to not sign her agreement either. Ratajczak was allegedly working for CAP at the same time as working for eCivis. Wickwire, Ratajczak, and CAP allegedly sold Allocate services to third party customers who should have contracted with eCivis and GTY. Wickwire, Ratajczak, and CAP allegedly allowed third parties to access and use Allocate without a proper license and without paying fees to eCivis and GTY. These actions allegedly violated the APA, Licensing Agreement, and employment agreements.

When Wickwire and Ratajczak simultaneously resigned, they allegedly left eCivis and GTY without any knowledgeable employees to manage Allocate. Wickwire allegedly failed to train any other employees on Allocate as was her duty prior to resigning, leaving Allocate with little value and thereby damaging eCivis and GTY. Since their resignations, Wickwire and Ratajczak have allegedly continued to impermissibly access or grant unpermitted access to Allocate beyond the limited access permitted for customers of CAP.

d. The Instant Motion

On July 8, 2026, Wickwire filed the

instant motion to compel eCivis' further responses to Requests for Production, Set One. eCivis filed an opposition on August 4, 2026. Wickwire filed a reply on August 10, 2026.

II.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

III. DISCUSSION

a. Verification

Wickwire argues that eCivis' responses are improperly verified on information and belief.

"It is common sense when discovery requests are propounded on a business, particularly a large business, no single person is likely to have personal knowledge of everything the business collectively knows." (Perry v. Kia Motors America, Inc. (2023) 91 Cal.App.5th 1088, 1097.) "Under such circumstances, 'information and belief' is the only realistic way to verify answers on behalf of the entity." (Ibid.) Thus, it is "entirely proper" for a corporate agent to "sign the verification based on information and belief." (Ibid.)

Therefore, the verification is proper.

b. Statement of Compliance/Inability to Comply

Wickwire has good cause for the RFPs because they seek documents supporting the allegations in eCivis' cross-complaint. eCivis is entitled to preserve objections while providing a substantive response. However, its response must be code-compliant. Specifically, a statement of compliance or inability to comply must be made as follows:

A statement that

the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.

(Code

Civ. Proc., § 2031.220.)

A representation

of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.

(Code

Civ. Proc., § 2031.230.)

eCivis' responses do not meet this

standard. The statement of compliance does not state whether the production will be allowed in whole or in part and does not verify that all documents not subject to an objection will be produced. eCivis also acknowledges that it failed to respond to RFP Nos. 61-62 at all. Therefore, further responses are warranted.

c. Objections

In its opposition, eCivis focuses on four

objections to defend its responses. (Opp. at 7:9-9:28.) For the reasons discussed below, these objections do not preclude production.

First, eCivis argues that the requests are overbroad as to time and subject matter. However, each request at issue is tied to a specific allegation in the cross-complaint. This naturally limits the scope of the request. For example, if a document demonstrates Wickwire's interference with eCivis' customers as alleged in the cross-complaint, it is responsive and discoverable even if it is dated after 2023.

Second, eCivis argues that certain terms such as "profit losses" or "prospective economic relationships" are vague. However, each RFP pertains to allegations appearing in eCivis' own cross-complaint. Wickwire is entitled to demand that eCivis produce documents supporting its own allegations. These are not freestanding requests for general information on profits or losses. Instead, the requests seek information on those topics as alleged in eCivis' cross-complaint. eCivis cannot claim ignorance of its own allegations.

Third, eCivis argues that the demands are not limited to Allocate and instead sweep all of eCivis' activities. Again, the requests are tied to specific allegations in the cross-complaint. They do not sweep all of eCivis' activities; only what is alleged.

Lastly, eCivis argues that the requests improperly demand an expert damages calculation. eCivis fails to identify any RFP that asks for a damages calculation. Each RFP asks for existing documents. To the extent documents do not exist, eCivis must provide a proper statement of inability to comply as set forth above. If eCivis withholds any responsive document as privileged, it must provide a privilege log.

IV. CONCLUSION

Cross-Defendant Nicolie Wickwire's motion to compel further responses is GRANTED. Cross-Complainant eCivis shall provide further responses to RFP, Set One within 20 days of today. Sanctions are denied as the parties acted with substantial justification.